

Shashikant Singh v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 4 February 2021 · WRIT - C No. 3407 of 2021 · **Writ disposed; clause 6.5 representation directed; coercive recovery stayed six weeks.**

HEADNOTE

A writ to quash a Tehsildar recovery citation issued after a theft-of-electricity assessment was disposed of without examining the bill. Because the petitioner was disputing the accuracy of the bill, the Court relegated him to a representation before respondent no. 2 under clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided by a reasoned speaking order after hearing, and stayed coercive measures for six weeks or until that decision, whichever was earlier.

FACTUAL SUMMARY

An FIR was registered against the petitioner on 9 December 2019 for theft of electricity. He challenged it by writ, which was withdrawn so he could compound under section 152 of the Electricity Act, 2003, but he never approached the Corporation. After a final assessment, the Tehsildar, Mau, issued a recovery citation dated 25 September 2020. The petitioner sought certiorari to quash that citation and mandamus restraining its execution. The Corporation said he was disputing the bill's accuracy.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternate remedy for disputed bill

HOLDING

Where a consumer disputes the accuracy of a bill that has led to a Tehsildar recovery citation after a theft assessment, the writ court will not quash the citation on merits but will relegate him to a representation before the designated officer under clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided by a reasoned speaking order after hearing, with a short stay of coercive recovery. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Writ to quash a Tehsildar recovery citation on a disputed electricity bill was disposed of by relegating the petitioner to a clause 6.5 representation, without a merits decision on the citation. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The Court accepted the Corporation's submission that a consumer disputing the accuracy of the bill has an alternative remedy under clause 6.5 and directed a representation to respondent no. 2. ¶ 1

6.5-representation-as-appropriate-remedy The petitioner was directed to move a representation before respondent no. 2 within two weeks, to be decided by a reasoned speaking order within four weeks after hearing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 25.9.2020 AND CORRECTNESS OF THE FINAL THEFT ASSESSMENT

The Court did not examine the bill or the assessment; it relegated the dispute to clause 6.5. ¶ 1

NOT DECIDED — COMPOUNDING UNDER SECTION 152 OF THE ELECTRICITY ACT, 2003

An earlier writ against the theft FIR had been withdrawn so the petitioner could compound under section 152, but he never approached the Corporation; no compounding direction was given. ¶ 1

